

Consultancy Agreement

This Consultancy Agreement (“**Agreement**”) is hereby made and entered into on this [____] day of [____] 20__ (“**Effective Date**”) by and between:

[____], son of [____], aged [____] years and residing at [____] (hereinafter referred to as "**Consultant**" which term shall include his successors and heirs) of the First Part;

And

[____], a company incorporated under the laws of India with its registered office at [____], (hereinafter referred to as the "**Company**") of the Second Part;

The Consultant and the Company are each hereinafter referred to as a "**Party**" and collectively, as the "**Parties**".

BACKGROUND

1. The Company, which is in the business of [____], desires to procure and the Consultant has agreed to provide certain consultancy and advisory services.
2. This Agreement sets forth the terms and conditions applicable to the provision of the consultancy services by the Consultant.

NOW THEREFORE, in consideration of the mutual agreements and covenants hereafter set forth, the Parties hereto agree as follows:

1. Services

The Consultant agrees to provide certain consultancy and advisory services (“**Services**”) to the Company in accordance with the terms set out in this Agreement and the consideration for the same shall be as set forth under Clause 3. The Services shall include advisory, mentorship and strategic advice for the growth of the Company and to assist the Company in developing its business strategy and [____].

2. Term

This Agreement shall come into force on the Effective Date and shall continue to be valid for [____] months (“**Term**”) unless terminated earlier in accordance with this Agreement.

3. Payment Terms

In consideration for the Services provided, the Consultant shall be issued and allotted [____] equity shares of the Company of a face value of Rs. [____] each (“**Advisory Equity**”). The Consultant hereby acknowledges that: (a) the Advisory Equity constitutes sufficient consideration for the Services provided by him hereunder; and (b) there shall be no monetary consideration payable by the Company for the Services provided hereunder. The consideration is exclusive of all taxes under applicable law. The Consultant shall be responsible for payment of all applicable taxes for the Services rendered by him hereunder.

The Parties shall enter into a separate agreement to agree upon the terms and conditions attached to the Advisory Equity and in respect of all other actions or deeds required to be done by either Party to give effect to this Clause 3.

4. Intellectual Property Rights

The Deliverables shall be deemed to be ‘work for hire’ and all Intellectual Property Rights therein shall vest solely with the Company upon creation. To the extent that any right, title or interest in the Deliverables is not vested with the Company by operation of law or by contract, each Consultant hereby irrevocably and

perpetually assigns, transfers and conveys, to the Company any and all of such Consultant's worldwide, right, title and interest, and to the Intellectual Property Rights, in such Deliverables. Each Consultant shall provide such further assurances, take such action, and execute such further documents and instruments as the Company may reasonably request in order to carry out the purposes of this Clause 4. The Intellectual Property Rights, in such Deliverables. Each Consultant shall provide such further assurances, take such action, and execute such further documents and instruments as the Company may reasonably request in order to carry out the purposes of this Clause 4.

To the extent that any Deliverable is based on or uses or embodies any material of a Consultant that was created outside or prior to this Agreement ("**Pre-existing Material**") then, in consideration for the fees payable under this Agreement, such Consultant hereby grants the Company, a limited, worldwide right to use the Pre-existing Material as long as such use is required for the use of the Deliverables by the Company. The Parties agree and acknowledge that all rights in and to the Pre-existing Material shall continue to be with the Consultant except for the limited rights expressly granted to the Company under this Clause 4.

"**Deliverable**" for the purposes of this Agreement shall mean any report, document, paper, drawing, design, presentation, photo, graphic, logo, typographical arrangement, software or any other material not including the Pre-existing Material that is provided by the Consultants and represented to be the final deliverable in performing the Services under this Agreement.

"**Intellectual Property Rights**" for the purposes of this Agreement shall mean patents, rights to inventions, copyright and related rights, trademarks, trade names and domain names, rights in goodwill or to sue for passing off, rights in designs, rights in computer software, database rights, rights in confidential information (including know-how and trade secrets) and any other intellectual property rights, in each case whether registered or unregistered and including all applications (or rights to apply) for, and renewals or extensions of, such rights and all similar or equivalent rights or forms of protection which may now or in the future subsist in any part of the world.

5. Confidentiality

Each Party understands and acknowledges that it may receive Confidential Information ("**Receiving Party**") of the other Party ("**Disclosing Party**") during the term of this Agreement. The Receiving Party shall not disclose the Disclosing Party's Confidential Information to a third party without the Disclosing Party's prior written consent. Further, the Receiving Party shall only share Confidential Information with such of its employees and representatives who have a need to know the Confidential Information in relation to the Receiving Party's obligations under this Agreement and who are subject to confidentiality obligations which are no less onerous than contained in this Agreement.

"**Confidential Information**" shall mean any confidential or proprietary information, of a Party, in any form, including but not limited to the information relating to the such Party's past, present or future products, services, research and development or business activities (and the terms of this Agreement), that is not in public domain which when disclosed is (a) marked as confidential (b) is identified as confidential at the time of disclosure; or (c) that is manifestly of a confidential nature.

Confidential Information shall not include information that is:

- a. publicly available prior to this Agreement or is made publicly available by the Disclosing Party without restriction;
- b. rightfully received by the Receiving Party from third parties without accompanying confidentiality obligations;
- c. already in the Receiving Party's possession and was lawfully received from sources other than the Disclosing Party;
- d. independently developed by the Receiving Party.

The confidentiality obligations under this Agreement shall continue for a period of three (3) years following disclosure thereof irrespective of whether this Agreement is terminated or not.

Each Party acknowledges that any breach of its obligations under this Clause 5 shall be construed to be a material breach of this Agreement. Each Party further acknowledges and agrees that, in the event of a breach or threatened breach of any provision of this section, the Disclosing Party may have no adequate remedy in

damages and, accordingly, is entitled, without waiving any other rights or remedies, to seek such injunctive or equitable relief against the Receiving Party as may be deemed proper by a court of competent jurisdiction.

6. Warranty and Disclaimers

- (a) The Consultant warrants to the Company that he: (i) has all necessary rights and authority to enter into and perform this Agreement; (ii) has no conflict of interest in respect of any third party obligations that he is bound by, in performance of this Agreement.
- (b) The Consultant hereby disclaims, and the Company expressly waives all other conditions, representations and guarantees, whether express or implied, arising by law, custom, oral or written statements of the Consultant or third parties including, but not limited to, any warranty of merchantability or fitness for particular purpose or of error-free and uninterrupted use or of non-infringement except to the extent expressly provided in this agreement.

7. Termination

Either Party may terminate this Agreement by issuing a written notice of termination to the other Party [] days in advance of such intended termination. The Consultant shall not be liable to refund any amount in respect of the Advisory Equity or part thereof, or transfer any part of the Advisory Equity to the Company upon earlier termination of this Agreement, provided that such termination was not for reasons of breach or default on part of the Consultant.

8. Nature of Relationship

The Consultant is engaged by the Company in the capacity of an independent contractor to render the Services in accordance with the terms of this Agreement. Nothing in this Agreement shall be construed to mean that the Consultant is an employee, worker, agent or partner of the Company. Nothing in this Agreement shall be construed to have created a joint venture between the Parties.

9. Limitation of Liability

In no event shall the Consultant be liable to the Company, its employees or any person acting on its behalf, whether in contract, tort (including negligence) or otherwise for any loss of goodwill, any loss of business, profits or revenue, loss of operation time, increased costs or wasted expenditure, damages of any kind including special, indirect, incidental, consequential, punitive, exemplary, or tort damages arising out of or relating to this Agreement.

The maximum aggregate amount that the Company or any Party claiming through it can recover from the Consultant for all claims arising from, under or relating to this Agreement (whether in contract, tort including negligence or otherwise) will in no event exceed the value of the services performed under this Agreement till the date on which such claim arose.

10. Force Majeure

Neither Party shall be responsible for delays or failures in performance resulting from acts of god, acts of civil or military authority, fire, flood, strikes, war, epidemics, shortage of power, or other acts or causes reasonably beyond the control of such Party. The Party experiencing the force majeure event agrees to give the other Party notice promptly following the occurrence of a force majeure event, and to use diligent efforts to re-commence performance as promptly as commercially practicable.

11. Non-exclusivity

The Services provided by the Consultant under this Agreement is not exclusive to the Company and the Consultant shall have the right to enter into similar arrangements with any third party without the knowledge or consent of the Company. Nothing in this Agreement shall prevent the Consultant from being engaged, concerned or having any financial or other interest in any capacity in any other business or entity during the term of this Agreement as long as such activity does not cause a breach of the obligations of the Consultant under this Agreement.

12. Delivery by Electronic Means

This Agreement, to the extent signed and delivered by electronic means, shall be treated in all manner and respects as an original agreement and shall be considered to have the same binding legal effect as if it were the original signed version thereof delivered in person.

13. Entire agreement

This Agreement sets forth the entire agreement of the parties with respect to the subject matter hereof, and supersedes all prior oral and written agreements, understandings, representations, conditions and all other communications relating thereto.

14. Severability

If any provision of this Agreement is held to be unenforceable or invalid, the other provisions shall continue in full force and effect.

15. Governing Law and Dispute Resolution

This Agreement shall be interpreted in accordance with the substantive laws of the Republic of India, exclusive of any choice of law provisions. Any dispute arising under this Agreement shall be within the sole and exclusive jurisdiction of competent courts in [].

IN WITNESS WHEREOF, the Parties have executed this Agreement on the Effective Date:

Consultant

Name:
Title:
Date:

For the Company

Name:
Address:
Date:

CONSULTANT AGREEMENT

This Consultant Agreement (hereinafter “**Agreement**”) is hereby entered into as of this the [.] day of [.] 201[.] (“**Effective Date**”)

BY AND BETWEEN

[.] a private limited company incorporated under the Companies Act, 1956/2013 having its office at [.] (the “**Client**” which term shall include parent and subsidiary companies and permitted assigns);

AND

Mr. [.] son of Mr. [.] currently resides at [.] (the “**Consultant**”, which term shall include successors and permitted assigns).

The Company and Consultant are hereinafter collectively referred to as the “**Parties**” and individually referred to as the “**Party**”.

WHEREAS, the Client is in the business of [.]

WHEREAS, the Consultant is [.]

WHEREAS, the Client desires to engage the Consultant to provide certain services in the area of Consultant’s expertise and the Consultant is willing to provide such services to the Company;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth below, it is hereby covenanted and agreed by the Company and the Consultant as follows:

1. SERVICES/PROJECT.

Subject to the terms and conditions set forth herein, Client hereby engages the Consultant to perform, and Consultant agrees to perform, professional services in relation to [.] (“**Work**”) as described more in detail in Annexure A.

2. DELIVERABLES.

Upon completion, Consultant shall submit the completed Project in the format reasonably acceptable to Client. Subject to the terms set forth herein, including section 3 below, the manner and method of producing the Work is monitored by the Client and the Consultant shall carry on such Work as long as they comply with Client requirements, which shall be described in Annexure A or may be communicated in writing to Consultant (e-mail is acceptable). Consultant is obliged to only deliver the Work and the Client is not entitled to

demand Consultant's engagement in another project unless or until Client and Consultant enter into a separate agreement to cover such project on mutually agreed-upon terms.

3. OBLIGATIONS AND WARRANTIES OF CONSULTANT.

a) Upon submitting the Project to the Client, Consultant represents and warrants that the Project (or any part of it):

- is plagiarism-free and original (is not owned by any third party fully or partially and does not contain any previously produced text, “copy-pasting”);
- complies with all requirements provided by the Client (formatting style is considered a requirement) in Annexure A;
- has not been obtained by unlawful means;

b) The Consultant acknowledges and agrees that if they fail to adequately complete the Work by the agreed due date, the Client has the sole right to cancel this Agreement; provided that Client must pay Consultant a reasonable prorated amount of the Fees proportionate to that portion of the Project completed to date. If the Consultant fails to meet the Work deadline, they must contact the Client to request deadline extension at least 24 hours prior to the due date. Extension may be granted at the Client’s sole discretion.

c) The Project must conform to general standards as determined by the Client. Consultant acknowledges and represents that if the Project fails to conform to the general standards, the Client has the sole right to request immediate revision of the Work, deny payment, and/or cancel this Agreement. If the Work is deemed inappropriate by the Client at the time of submission either for content or other reasons, the Client has the sole right to request immediate revision of Work, deny payment, and/or refuse to use any portion of the Work related to the business of Client or otherwise.

d) The Consultant shall also be responsible for the following specific obligations:

- (i)
- (ii)
- (iii)
- (iv)

4. COMPENSATION.

a) The Consultant shall be compensated for the Services with an amount of Rs. [.]/- (Rupees [.]), and no other fee or expenses shall be paid to the Consultant, unless the Client has approved such fee or expenses in writing.

b) The completeness of the Services and work product shall be determined by the Client in its sole discretion, and the Consultant agrees to make all revisions, additions, deletions or alterations as requested by the Client.

c) The Compensation shall be charged monthly.

d) The Consultant shall be solely responsible for any and all taxes, social security contributions or payments, disability insurance, unemployment taxes, and other payroll type taxes or other legal requirements applicable to such compensation or to the Consultant.

e) The Consultant hereby indemnifies and holds the Client harmless from any claims, penalties, losses, costs, liabilities, injuries or damages suffered by the Client arising out of the Consultant's failure with respect to its obligations under this clause.

5. MATERIALS.

The Client agrees to furnish the Consultant with all necessary materials needed to complete the Work described herein. Such materials may include, but are not limited to, podcast [...] on what the Client's objectives are, and other materials.

6. OWNERSHIP AND ASSIGNMENT

a) Ownership:

- i. The Parties agree that the Client shall have complete and sole ownership over the work product or Services performed by the Consultant under this Agreement.
- ii. The Consultant shall promptly disclose in writing to the Client all works, products, discoveries, developments, designs, innovations, improvements, inventions, and data (whether or not at a commercial stage, or registrable under any intellectual property laws) which are authored, made, reduced to practice or learned by the Consultant (either alone or jointly with others) during the period that Consultant provides the Services to the Client, as a result of performing the Services including any concepts, ideas, suggestions and approaches related thereto or contained therein.
- iii. All materials, including without limitation any ideas, concepts or notes including all alterations thereof, which are developed in the process of performing the Services, or relate to the Services and Confidential Information (defined below) or any of the above are the property of Client, and shall be returned by Consultant to the Client promptly at the Client's request together with any copies thereof.

b) Assignment:

- i. The Consultant hereby assigns and agrees to assign to the Client, without royalty or any other consideration except as expressly set forth herein, all worldwide right, title and interest that the Consultant may have or acquire in and to the Client, its successors, assignees, or nominees, the Receiving Party's right, title and interest, if any, in any patents, trade secrets, trademarks, copyrights, or other intellectual property rights or proprietary information embodied in or relating to Consultant's work under this Agreement.
- ii. At the Client's request, the Consultant hereby agrees to cooperate with the Client and do all such actions and execute any documents necessary to give effect to the provisions of this section.

7. RELATIONSHIP OF THE PARTIES

- a) The Consultant and Consultant Personnel, if any, shall, at all times, remain independent contractors and nothing in this Agreement shall be construed to create the relationship of employer and employee, principal and agent, partnership or joint venture, or any other fiduciary relationship.
- b) The Consultant may not act as agent for, or on behalf of, the Client, or to represent the Client, or bind the Client in any manner.

c) Neither the Consultant, nor any of the Consultant Personnel, shall be entitled to any benefits accorded to any employees of the Client or other benefits generally granted to employees including but not limited to insurance, vacation, retirement benefits and sick pay.

8. CONFIDENTIALITY

a) Confidential Information:

- i. The Client owns and may develop, compile and own certain proprietary techniques, trade secrets, and confidential information, which are very valuable to the Client (collectively, “**Confidential Information**”). The Client may disclose Client Information to Consultant during the Consultant's performance of the Services.
- ii. Confidential Information is any information relating to the Client that is not accessible by the general public and includes not only information disclosed by Client, but also information developed or learned by Consultant during Consultant's performance of the Services. Client Information is to be broadly defined and includes all information, which has or could have commercial value or other utility in the business that the Client is or may be engaged in and the unauthorized disclosure of which could be detrimental to the interests of Client, whether or not such information is identified by Client.
- iii. Confidential Information includes, but is not limited to, details of customers and business contacts, developments, designs, inventions, software, techniques, know-how, data, marketing, sales or other business information, scripts, costs and resources, tools used; and all derivatives or improvements to any of the above.

b) Non-disclosure and Protection:

The Consultant agrees that at all times during or subsequent to the performance of the Services, the Consultant will keep confidential and not disclose or cause to be disclosed, publish, disseminate or otherwise make available or use Confidential Information, except for the Consultant's own use during the Term of this Agreement and only to the extent necessary to perform the Services. The Consultant shall not remove or cause to be removed tangible embodiments of, or electronic files containing, Confidential Information from the Client, without prior written approval of the Client.

9. TERM AND TERMINATION

a) **Term:** This Agreement shall take effect immediately from the Effective Date and continue to remain in full force and effect for a period of 3 (three) months and the Parties have the option of renewing the same (hereinafter, the “**Term**”), unless terminated earlier in accordance with this Agreement.

b) **Termination:** Either Party may terminate this Agreement for cause by providing the other Party written notice if the other Party: (i) is in material breach of this Agreement and has failed to cure such breach within five (5) days after its receipt of written notice of such breach provided by the non-breaching Party; (ii) engages in any unlawful business practice related to that Party's performance under the Agreement; or (iii) files a petition for bankruptcy, becomes insolvent, acknowledges its insolvency in any manner, makes an assignment for the benefit of its creditors, or has a receiver, trustee or similar party appointed for its property. The Parties shall give a notice of 1 (one) month prior to termination.

10. INDEMNIFICATION.

Client agrees to hold Consultant harmless for any such damages that may arise from Consultant's work product. In no event shall Consultant be liable for any direct, indirect, punitive, incidental, special consequential damages whatsoever arising out of or connected with the use or misuse of her work product. Consultant assumes no responsibility for any special, incidental, indirect, or consequential damages of any kind, or any damages whatsoever (including without limitation, those resulting from her work product or from: (a) user or Client reliance on the materials or documents produced (b) costs of replacement writings, training, or documents (c) loss of use, data, or profits (d) delays or business interruptions, (e) and any theory of liability, arising out of or in connection with the use or performance of Consultant's work whether or not Consultant has been advised of the possibility of such damages.

11. LIABILITY

Except with respect to the parties' indemnification obligations, neither party shall be liable to the other for any special, indirect, incidental, punitive, or consequential damages arising from or related to this agreement, including bodily injury, death, loss of revenue, or profits or other benefits, and claims by any third party, even if the parties have been advised of the possibility of such damages. The foregoing limitation applies to all causes of action in the aggregate, including without limitation to breach of contract, breach of warranty, negligence, strict liability, and other torts.

12. MISCELLANEOUS

a) **Entire Agreement:** This Agreement, and any annexures, duplicates, or copies, constitutes the entire agreement between the Parties with respect to the subject matter of this Agreement, and supersedes all prior negotiations, agreements, representations, and understandings of any kind, whether written or oral, between the Parties, preceding the date of this Agreement.

b) **Amendments and Assignment:** This Agreement may be amended only by written agreement duly executed by an authorized representative of each party (email is acceptable). This Agreement shall not be assigned by either party without the express, written consent of the other party

c) **Severability:** If any provision or provisions of this Agreement shall be held unenforceable for any reason, then such provision shall be modified to reflect the parties' intention. All remaining provisions of this Agreement shall remain in full force and effect for the duration of this Agreement.

d) **No Waiver:** A failure or delay in exercising any right, power or privilege in respect of this Agreement will not be presumed to operate as a waiver, and a single or partial exercise of any right, power or privilege will not be presumed to preclude any subsequent or further exercise, of that right, power or privilege or the exercise of any other right, power or privilege.

e) **Dispute Resolution, Governing Law and Jurisdiction:** i) The Parties agree to first mediate any disputes or claims between them in good faith and resolve the disputes amicably and share the cost of mediation equally. In the event that mediation fails, any claim arising out of or relating to this Agreement shall be settled by Arbitration in accordance with the Indian Arbitration and Conciliation Act, 1996. All hearings will be held in [.] and shall be conducted in English. The parties shall each appoint an arbitrator who shall then appoint a sole arbitrator to preside over the Arbitration proceedings. ii) This Agreement shall be governed by and construed in accordance with the laws of India. The adjudication of any dispute will be the exclusive jurisdiction of the courts of [.]

- f) **Time**: The Contactor agrees that time is of the essence in this Agreement.
- g) **Notice**: Any notice, demand, or request with respect to this Agreement shall be in writing and shall be effective only if it is delivered by personal service, by air courier or emailed to the address set forth above. Such communications shall be effective when the addressee receives them.
- h) **Headings**: The numbering and captions of the various sections are solely for convenience and reference only and shall not affect the scope, meaning, intent or interpretation of the provisions of this Agreement, nor shall such headings otherwise be given any legal effect.

The Parties have read and understood all the terms herein and are voluntarily, free of any coercion, signing this Agreement on the date stated in the introductory clause.

(Client)
Name:
Designation:

(Consultant)
Name:

ANNEXURE - A

Details of Services

1. Services to be provided by Consultant:

<to be added>

Additional Services may be added by parties by mutual agreement in writing.

2. Work product to be delivered by Consultant (Check boxes as applicable, and set forth details as desired in space provided):

☐ Oral recommendations/reports

☐ Written reports

☐ Daily

☐ Weekly

☐ Monthly

☐ Upon Completion

☐ Other:

☐ Notes, Drafts, Working Papers, etc.

3. Schedule for Completion of Work:

S.No.	Task to be completed	Deadline (Date)